

Online Complaint Summary

2/19/26 4:46 AM

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Board:	California Board of Registered Nursing - BRN
License Type:	Registered Nurse - RN
Complaint Number:	4002026005943
Incident Date:	10/03/2025

Description:

Nature of Complaint: Gross Negligence, Patient Abandonment, Incompetence, and Inappropriate Delegation of Care (Abuse of Emergency Services).

I presented to Jasmin Garcia, FNP for a physical and to **establish primary care for medical management of a chemical dependency (Suboxone and Clonazepam).** During this visit, FNP Garcia exhibited a severe and dangerous extreme departure from the standard of care:

Failure to Treat a Life-Threatening Condition (Gross Negligence): In her own clinical notes, FNP Garcia documented my history and explicitly wrote: **"Reports seizing without any clonazepam."** Despite documenting an active, life-threatening **seizure risk from benzodiazepine withdrawal**, she provided absolutely **no medical management, no tapering protocol, and no emergency medication.** She dismissively concluded the notes with **"No further complaints at this time,"** completely ignoring the **fatal risk** she had just documented.

Patient Abandonment & Unsafe Delay of Care: Rather than consulting her supervising physician or initiating a **safe bridge**, she **refused to provide care and instructed me to wait 26 days (until 10/29/2025)** for a brief phone consultation with an MD, leaving a high-risk patient entirely **unmanaged.**

Inappropriate Delegation / Abuse of Emergency Services: FNP Garcia explicitly **instructed me to continue utilizing the local hospital Emergency Room** to obtain my **prescription refills for Suboxone** for the next month. My managed care plan (**L.A. Care**) **formally documented** this instruction in a **grievance resolution letter.** Instructing an established patient to abuse acute Emergency Department resources for routine addiction maintenance—because the FNP refuses to provide standard primary care—is a **gross violation** of **clinical protocols** and **state healthcare guidelines.**

I request the Board of Registered Nursing investigate FNP Garcia for gross negligence, failure to consult a supervising physician regarding a **severe seizure risk**, and her **unsafe instruction to utilize emergency rooms for standard prescription maintenance.**

Incident Address 1

Business Name/Facility Name:	Bartz-Altadonna Community Health Center
Address Line 1:	38660 Medical Center Dr.
Address Line 2:	Unit A200
City:	Palmdale
State:	California
Zip:	93551
Hospital:	No
Home:	No
Other:	Yes
If you responded 'Yes' to the previous question, please provide a description of the location of the incident.	Community Health Center

Additional Complaint Information 1

Have you filed a complaint with any other government agency regarding this incident?	No
Does this complaint concern a child custody issue?	No
Was the person named in this complaint appointed by the court to prepare a custody recommendation to the court?	No
If children are involved in this case, do you have joint legal custody of the child/children involved in this case?	No
Have you tried to resolve or mediate this complaint?	No
Reason for treatment:	Medication Management
Patient Name:	Nicolas Hernandez
Date of Birth:	██████████ (mm/dd/yyyy)
Relationship to the patient:	Self
Substandard Care (e.g. misdiagnosis, negligent treatment, delay in treatment, etc.)	Yes
Prescribing Issues (e.g. excessive/under prescribing, Internet)	No
Unlicensed Provider or Aiding/Abetting unlicensed practice	No
Sexual Misconduct	No
Provider (e.g. Physician, Psychologist, Psychotherapist etc.) Impairment (e.g. drug, alcohol, mental physical)	No

Unprofessional Conduct (e.g. breach of confidence, record alteration, fraud, misleading advertising, arrest or conviction)

No

Office Practice (e.g. failure to provide patient/medical records to patient, failure to sign death certificate, patient abandonment):

Yes

Other:

No

If the complaint is medical/psychological/psychotherapy treatment related, please indicate the patient has been examined/treated by another provider/professional for this same condition?:

Yes

If you responded 'Yes' to the previous question, please include provider name, address, and treatment dates.

[REDACTED]

Have you initiated or filed legal action regarding this incident?

No

Respondent

License Type:

Registered Nurse - RN

First Name:

Jasmin

Last Name:

Garcia

Gender:

Female

Address:

38660 Medical Center Dr.

Unit A200

Palmdale, CA

93551

US

Phone Number:

(661) 874-4050

Complainant

First Name:

Nicolas

Last Name:

Hernandez

Gender:

Male

Address:

[REDACTED]

LOS ANGELES

[REDACTED], CA

9[REDACTED]

US

Phone Number:

[REDACTED]

E-mail Address:



Attachments

LA CARE FAILURE.pdf

**L.A. Care Grievance - Proof of instruction to
use ER for maintenance**
